

Ramavtar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 December 2022 · Writ-C No. 34797 of 2022 · **Writ disposed of; remaining computation dispute relegated to Clause 6.5, with no coercive measures pending a speaking order.**

HEADNOTE

After a Consumer Forum had set aside prior electricity bills and directed revision without interest or surcharge, the Allahabad High Court declined to interfere with alleged recovery. Finding no live recovery as on date, it left any remaining computation dispute to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and directed that if such an objection is filed, no coercive measures shall be taken until a reasoned speaking order is passed under intimation to the consumer.

FACTUAL SUMMARY

Ramavtar Singh alleged the department had violated a Consumer Forum order dated 11 November 2022, which set aside earlier electricity bills and directed fresh bills from 2013 at average rate without interest or surcharge. The department produced a revised bill said to comply. The petitioner neither appended the Forum order nor showed whether the recovery citation predated it. Department counsel stated there was presently no recovery and undertook to advise withdrawal of citations sent to the Tehsil before the Forum order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing computation dispute — Clause 6.5 as alternate remedy

HOLDING

Where a Consumer Forum has already set aside prior electricity bills and directed revision, the licensee has issued a revised bill, and there is no live recovery as on date, the High Court will not interfere in writ. Any remaining dispute as to computation of the revised charges may be raised before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if such objection is filed, no coercive measures shall be taken until a reasoned speaking order is passed under intimation to the consumer. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ challenging recovery after Consumer Forum-directed bill revision was disposed of without merits relief; remaining computation was left to Clause 6.5. ¶ 1

billing-objection-to-executive-engineer-under-6.5 Petitioner left free to object to the current computation before the Executive Engineer under Clause 6.5, with a speaking-order requirement and a bar on coercive measures pending disposal. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Dispute as to computation of the revised electricity bill after the Consumer Forum order was treated as a Clause 6.5 statutory objection, not a matter for writ interference. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE REVISED ELECTRICITY BILL AND THE COMPUTATION OF CHARGES
Left to a Clause 6.5 objection before the Executive Engineer. ¶ 1

NOT DECIDED — WHETHER THE RECOVERY CITATION PREDATED THE CONSUMER FORUM ORDER OF 11 NOVEMBER 2022

Petitioner supplied no recovery-citation details; Court recorded that as on date there was no recovery. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.